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Papua New Guinea

Compilation of information prepared by the Office of the United Nations High Commissioner for Human Rights

I. Background

1. The present report was prepared pursuant to Human Rights Council resolutions 5/1 and 16/21, taking into consideration the outcome of the previous review.[1] It is a compilation of information contained in relevant United Nations documents, presented in a summarized manner owing to word-limit constraints.

II. Scope of international obligations and cooperation with human rights mechanisms

2. The Office of the United Nations High Commissioner for Human Rights (OHCHR) has maintained a field presence in Papua New Guinea since 2008 through the deployment of a human rights adviser.[2]

3. The United Nations country team recommended that Papua New Guinea advance the ratification of the Second Optional Protocol to the International Covenant on Civil and Political Rights, aiming at the abolition of the death penalty, the Convention against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment, the Optional Protocol to the Convention against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment and the International Convention for the Protection of All Persons from Enforced Disappearance and ratify the Optional Protocols to the Convention on the Rights of the Child on the involvement of children in armed conflict and on the sale of children, child prostitution and child pornography.[3] The United Nations Educational, Scientific and Cultural Organization (UNESCO) recommended the ratification of the Optional Protocol to the International Covenant on Economic, Social and Cultural Rights.[4]

4. The United Nations country team stated that Papua New Guinea had yet to accede to the Convention relating to the Status of Stateless Persons and the Convention on the Reduction of Statelessness.[5] The Office of the United Nations High Commissioner for Refugees (UNHCR) recommended that Papua New Guinea accede to both conventions.[6]

5. UNESCO encouraged the ratification of the Convention against Discrimination in Education. It also encouraged Papua New Guinea to ratify the Convention on the Protection and Promotion of the Diversity of Cultural Expressions, the Global Convention on the Recognition of Qualifications concerning Higher Education and the Asia-Pacific Regional Convention on the Recognition of Qualifications in Higher Education.[7]

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6. The Office on Genocide Prevention and the Responsibility to Protect reported that Papua New Guinea had yet to ratify the Rome Statute of the International Criminal Court.[8]

7. The United Nations country team referred to lengthy delays in reporting to the treaty bodies, which had continued to hamper the implementation by Papua New Guinea of its human rights commitments, and recommended accelerating the operationalization of the national mechanism for implementation, reporting and follow-up established in 2023. It also recommended that Papua New Guinea sustain engagement with OHCHR for technical assistance on treaty ratification, implementation and reporting.[9]

8. The United Nations country team noted that, despite a standing invitation to all special procedures, several requests for country visits remained pending, with the last visit having been conducted in 2014. It recommended that Papua New Guinea strengthen cooperation with United Nations human rights mechanisms, including by facilitating visits by special procedure mandate holders.[10]

III. National human rights framework

1. Constitutional and legislative framework

9. The United Nations country team referred to important recent legislation and policies impacting human rights, including the amendments made in 2022 to the Criminal Code abolishing the death penalty and criminalizing sorcery accusation-related acts, the Family Protection (Amendment) Act 2022, the Civil and Identity Registration Act 2024, the Counter-Terrorism Act 2024, the Disability Services Act 2025 and strategies on human rights, gender-based violence, gender equality, internal displacement and prevention.[11]

2. Institutional infrastructure and policy measures

10. The United Nations country team referred to the National Human Rights Strategy (2024–2029) of Papua New Guinea and recommended implementing the new human rights policy expected to be launched in 2026.[12]

11. The United Nations country team stressed that Papua New Guinea had advanced efforts to establish a national human rights institution, with draft enabling legislation endorsed by the National Executive Council.[13] It recommended establishing and operationalizing an independent national human rights institution in line with the principles relating to the status of national institutions for the promotion and protection of human rights (the Paris Principles).[14]

12. The Office on Genocide Prevention and the Responsibility to Protect recommended that Papua New Guinea establish and operationalize a national early warning and atrocity prevention mechanism, including through the effective implementation of the National Prevention Strategy.[15] The Office recommended appointing a senior-level national focal point on the responsibility to protect to strengthen the coordination of atrocity prevention efforts at the national level, while referring to a similar recommendation made in the previous universal periodic review cycle.[16]

IV. Promotion and protection of human rights

A. Implementation of international human rights obligations, taking into account applicable international humanitarian law

1. Right to life, liberty and security of person, and freedom from torture

13. The United Nations country team reported that, in 2022, Parliament had amended the Criminal Code to repeal the death penalty and replace it with life imprisonment following a de facto moratorium on capital punishment.[17]

14. OHCHR noted that tribal conflicts over land disputes and clan rivalries had intensified since the 2022 elections. The proliferation of firearms had made clashes increasingly

deadly.[18] In February 2024, the United Nations in Papua New Guinea had strongly condemned the mass killings in Enga Province.[19] OHCHR called upon the Government to ensure the surrender of all arms,[20] address the root causes of the violence and work towards tribal reconciliation.[21] The United Nations in Papua New Guinea called upon the authorities to fully investigate the killings and bring the perpetrators to justice.[22]

15. In 2024, the United Nations High Commissioner for Human Rights stated that he was horrified by the shocking eruption of deadly violence in East Sepik Province, seemingly the result of a dispute over land and lake ownership and user rights.[23] The United Nations in Papua New Guinea condemned the killings and brutal rapes of women and children.[24] The High Commissioner called for prompt, impartial and transparent investigations and accountability and reparations, as well as efforts to address the root causes and prevent the recurrence of violence.[25]

16. The United Nations country team was concerned at allegations of excessive use of force and ill-treatment by security officers in 2026 following reports that detainees at the Bomana Correctional Service Institute had been injured during an operation by correctional officers.[26]

17. The United Nations country team reported that, in 2024, the Ombudsman Commission had presented to Parliament its final report on the police shootings of students during the 2016 University of Papua New Guinea mass student demonstrations. It underscored the importance of adopting a preventive, coordinated and proactive approach to the management of public demonstrations to avoid excessive use of force, arbitrary detention and other human rights violations.[27]

18. The United Nations country team recommended that Papua New Guinea ensure prompt, impartial and effective investigation of all allegations of arbitrary arrest, unlawful detention, torture, excessive use of force, deaths in custody and other ill-treatment and hold those responsible to account. It also recommended strengthening internal and independent oversight and complaints mechanisms within the Royal Papua New Guinea Constabulary, the Papua New Guinea Defence Force and the Papua New Guinea Correctional Service, including safeguards against retaliation against victims, witnesses and journalists reporting on abuses in places of detention. It further recommended institutionalizing human rights training and operational guidance on arrest, detention, use of force and the treatment of persons deprived of liberty.[28]

2. Administration of justice, including impunity, and the rule of law

19. The United Nations country team referred to research on sorcery accusation-related violence showing that, over the past two decades, there had been only about 12 convictions annually on average. It noted that impunity was fuelled by underreporting, case withdrawal, social and customary pressures, limited police, prosecutorial and judicial capacity, and barriers to justice in rural and remote areas.[29]

20. The United Nations country team recommended accelerating the implementation and financing of frameworks relating to gender-based violence, child protection and sorcery accusation-related violence. It also recommended strengthening investigation, prosecution and survivor-centred access to justice in these cases, particularly through increased police, prosecutorial and judicial capacity, funding and resources. It recommended expanding survivor-centred services, protection measures and referral pathways, especially in rural and remote areas.[30]

21. The United Nations country team noted that the Independent Commission Against Corruption, established in 2020, had become operational in 2023 but faced major internal leadership disputes and system constraints. It recommended strengthening the Commission, by improving beneficial ownership transparency and inter-agency asset recovery cooperation. It also recommended accelerating the implementation of the reforms linked to anti-money-laundering and counter-terrorism financing and the updated national anti-corruption action plan.[31]

22. The United Nations Office on Drugs and Crime noted that the Conference of States Parties to the United Nations Convention against Corruption had identified the need in Papua New Guinea for technical assistance for the police and joint training for law enforcement authorities, such as the Financial Analysis and Supervision Unit. Recommendations had been made to take measures to enhance the transparency of and promote the contribution of the public to decision-making processes; ensure that the public had effective access to information; undertake public information activities that contributed to non-tolerance of corruption; and respect, promote and protect the freedom to collect, publish and disseminate information concerning corruption.[32]

3. Fundamental freedoms and the right to participate in public and political life

23. The United Nations country team reported that Papua New Guinea was currently reviewing the Industrial Relations Act with a view to repealing provisions that were inconsistent with the International Labour Organization (ILO) Freedom of Association and Protection of the Right to Organise Convention, 1948 (No. 87), and Right to Organise and Collective Bargaining Convention, 1949 (No. 98), including in relation to the limitations of the powers of the registrar to refuse or cancel the registration of a trade union. It recommended amending the Industrial Relations Act to bring it fully into line with those two ILO conventions.[33]

24. The United Nations country team also reported that there had been threats and other harmful acts, including cybercrime charges, against human rights defenders and journalists. Pressure on journalists in State-linked media also remained a concern. In 2025, Parliament had opened an inquiry into cases of suspension of journalists, while the Media Council had publicly called upon the Government to stop the suppression of media workers in State-owned broadcasters. Moreover, securing free or affordable and competent legal representation, as well as mental health and psychosocial support, for human rights defenders and journalists facing violence, threats or prosecution remained a serious challenge in the absence of support mechanisms.[34]

25. The United Nations country team recommended that Papua New Guinea investigate promptly, independently and fully all threats, harassment, violence and reprisals against journalists, trade unionists and human rights defenders and provide full legal and psychosocial support to them.[35] The Office on Genocide Prevention and the Responsibility to Protect recommended that all legislation related to media and civic space, both online and offline, be implemented in full compliance with international human rights standards.[36] UNESCO encouraged Papua New Guinea to ensure a transparency and accountability mechanism on the governance of digital platforms to ensure that human rights were upheld and mitigate risks associated with the spread of harmful content online.[37]

26. The United Nations country team stressed that Papua New Guinea had a constitutional guarantee of access to official information and a National Right to Information Policy 2020–2030, but it still lacked an access to information law.[38] UNESCO and the United Nations country team recommended introducing such a law in accordance with international standards.[39] UNESCO also recommended decriminalizing defamation and placing it within civil defamation legislation that was in accordance with international standards.[40]

27. The United Nations country team recommended strengthening the preparations for the 2027 general elections to ensure peaceful, safe, inclusive and credible elections across the full electoral cycle.[41]

4. Prohibition of all forms of slavery, including trafficking in persons

28. The United Nations country team reported that the national anti-human trafficking action committee had developed a new anti-human trafficking national action plan in 2025. It recommended that Papua New Guinea ratify the United Nations Convention against Transnational Organized Crime and adopt and implement the action plan.[42] Under the 2025 review of the implementation of the ILO Worst Forms of Child Labour Convention, 1999 (No. 182), the ILO Committee of Experts on the Application of Conventions and Recommendations requested Papua New Guinea to take the measures necessary to ensure the effective implementation of the Criminal Code (Amendment) Act 2013, in particular to

ensure that thorough investigations and prosecutions were carried out for persons who engaged in the trafficking of children, and that sufficiently effective and dissuasive sanctions were imposed in practice.[43]

5. Right to work and to just and favourable conditions of work

29. The United Nations country team reported that Papua New Guinea was currently reviewing the Employment Act 1978 and the Industrial Relations Act with a view to repealing provisions regarded as discriminatory against women under the ILO Equal Remuneration Convention, 1951 (No. 100), and Discrimination (Employment and Occupation) Convention, 1958 (No. 111), and to strengthening protection against violence and harassment in the workplace in line with the ILO Violence and Harassment Convention, 2019 (No. 190). It recommended accelerating the labour law reform to remove discriminatory provisions, strengthen equal pay and prohibit violence and harassment in the workplace in line with international labour standards.[44] In the context of the ongoing labour reforms, the ILO Committee of Experts on the Application of Conventions and Recommendations advised Papua New Guinea to review or amend the Public Services (Management) Act 2014, section 20.64 of General Order No. 20 and section 137 of the Teaching Service Act 1988 and bring them into conformity with the ILO Discrimination (Employment and Occupation) Convention, 1958 (No. 111), while recalling the discriminatory nature of those laws on the ground of sex.[45]

6. Right to an adequate standard of living

30. The United Nations country team stressed that forced evictions had remained a recurring human rights concern in Port Moresby and other urban areas. In early 2026, police had carried out evictions in response to criminal activities attributed to informal settlers in Port Moresby, raising further concerns about due process, proportionality and the protection of affected communities. The United Nations country team recommended applying a "human rights city" approach to urban growth in Port Moresby and other centres, grounded in meaningful consultation, rights-based planning, a preference for on-site solutions over eviction and displacement, and strong implementation of the National Internally Displaced Persons Policy.[46]

31. In February 2025, the United Nations in Papua New Guinea expressed concern over reports of forced evictions and house burnings in the Baruni informal settlement and stressed that collective punishments and reprisals should never be considered part of legitimate law enforcement. It urged the authorities to ensure that law enforcement actions were conducted in accordance with human rights principles, due process and the rule of law, and called for an immediate investigation.[47]

7. Right to health

32. The United Nations country team stated that, although free health services were mandated by law, implementation across 21 provinces and the Autonomous Region of Bougainville remained incomplete. There were also structural barriers in the health sector, including health worker shortages, weak infrastructure, a poor referral system, uneven quality of care, cost, harmful social norms and persistent urban-rural disparities. The United Nations country team recommended increasing equitable investment in primary healthcare, essential medicines, infrastructure and the health workforce, especially in geographically isolated and disadvantaged communities. It also recommended increasing national and subnational investments in the HIV response and strengthening community-based action to address stigma and discrimination.[48]

33. The United Nations country team referred to the limited progress recorded in strengthening technical capacity for quality antenatal, intrapartum, postpartum and newborn care and in delivering integrated and people-centred services for maternal and child health. It recommended expanding sexual and reproductive health, maternal, newborn and child health services.[49]

34. The United Nations country team reported that there had been partial progress in Papua New Guinea in reducing leprosy-related stigma through a skin disease project in

selected provinces. It recommended scaling up integrated, community-based and stigma-free health services to support universal health coverage and inclusive access.[50]

8. Right to education

35. The United Nations country team recommended ensuring sustainable financing and effective implementation of the National Education Plan 2020–2029 and the Government's free education policy to guarantee equitable access to quality education for all, particularly girls, children with disabilities and children in rural and remote areas.[51]

36. The ILO Committee of Experts on the Application of Conventions and Recommendations noted the absence of legislation making education compulsory in Papua New Guinea and the absence of a provision in the Education Act 1983 specifying the age of completion of compulsory education.[52] UNESCO reported that the Education Act did not guarantee free primary and secondary education, nor did it provide for free and compulsory pre-primary education.[53] The Committee of Experts urged the Government to take measures to provide for compulsory education for boys and girls up to the minimum age for admission to employment of 16 years.[54] UNESCO encouraged Papua New Guinea to guarantee in legislation at least 12 years of free primary and secondary education.[55]

37. According to UNESCO, in 2023, the out-of-school rates decreased to 31.27% of adolescents of lower secondary school age and 61.86% of youth of upper secondary school age. UNESCO recommended continuing efforts to decrease the rates of out-of-school children.[56]

9. Cultural rights

38. UNESCO encouraged Papua New Guinea to promote access to and participation in cultural heritage and creative expression conducive to implementing the right to take part in cultural life. UNESCO also encouraged Papua New Guinea to facilitate the participation of communities, practitioners, cultural actors and civil society organizations, as well as representatives of vulnerable groups, such as minorities, migrants, refugees, youth, Indigenous Peoples and persons with disabilities, and to ensure that equal opportunities were given to women and girls.[57]

10. Development, the environment, and business and human rights

39. The United Nations country team referred to some progress in embedding participation and inclusion in climate-related policy processes, including through the National Adaptation Plan and the National Prevention Strategy 2025–2030. The Protected Areas Act 2024, however, did not guarantee meaningful participation by women, children, persons with disabilities, local communities and civil society across climate, disaster and environmental decision-making or provide explicit human rights safeguards for forestry projects. The United Nations country team recommended meaningful participation by women, children, persons with disabilities, local communities and civil society in the design, implementation and monitoring of climate change, disaster risk reduction and environmental policies.[58]

40. The United Nations in Papua New Guinea welcomed the advisory opinion of the International Court of Justice affirming that States had binding legal obligations under international law to take effective measures to address climate change. It also stressed that the advisory opinion reinforced the urgent need for inclusive and sustainable development policies that prioritized climate resilience, biodiversity conservation, climate-smart water, sanitation and hygiene adaptation, and social protection, particularly for women, youth and adolescents, children, Indigenous Peoples and persons with disabilities. Papua New Guinea was among the countries that had sought the Court's guidance.[59]

41. The United Nations country team reported that human rights concerns in the extractive sector persisted, particularly with regard to deadly violence in and around the Porgera mine in Enga Province; allegations of non-compliance with environmental and human rights standards connected to the Wafi-Golpu mine project; and imminent life-threatening risks associated with the Panguna mine in central Bougainville and contamination of the Jaba-Kawerong river system. Despite public opposition and a stated moratorium on deep-sea

mining, exploration continued in the Bismarck Sea. The United Nations country team recommended adopting a national action plan on business and human rights in line with the Guiding Principles on Business and Human Rights and strengthening human rights safeguards, community participation and accountability in environmental, forestry and extractive sector governance.[60]

42. While noting the tribal and clan clashes over ownership of land and water in the Highlands Region, the Office on Genocide Prevention and the Responsibility to Protect warned that disputes over resources in the Highlands Region were likely to increase over time given climate change and in the presence of other risk factors, such as weak State institutions and governance, including corruption. The Office recommended strengthening governance and anti-corruption measures, including by enhancing transparency and accountability in the management and distribution of natural resource revenues.[61]

B. Rights of specific persons or groups

1. Women

43. The United Nations country team noted the adoption of the Gender Equality and Women's Empowerment Policy 2025–2035, which was focused on women's leadership, health, education, economic activities, infrastructure, climate change, natural resource management, gender-based violence and enabling systems.[62]

44. The United Nations Population Fund and the United Nations country team reported that gender-based violence remained a pervasive issue in Papua New Guinea, with an increase of over 210% in reported cases since 1986. In 2025, approximately 64% of women – an estimated 3.41 million – reported having experienced intimate partner violence. Accountability remained extremely weak, with conviction rates as low as 0.5% in some regions.[63] The United Nations country team recommended accelerating the implementation and financing of the National Strategy to Prevent and Respond to Gender-Based Violence 2026–2035, strengthening investigations, prosecutions and survivor-centred access to justice and expanding protection measures, especially in rural and remote areas.[64]

45. The United Nations country team reported that the Organic Law on Provincial Governments and Local-level Governments provided for two reserved seats for women in rural local-level governments and one reserved seat for women in urban local-level governments. However, the effectiveness of this law had been limited due to underresourcing, unequal power dynamics and lack of political commitment. The United Nations country team recommended adopting constitutional, legal and policy reforms to institutionalize temporary special measures and ensuring women's equitable participation in political and decision-making processes at all levels. It also recommended that Papua New Guinea establish an electoral financing framework that reduced financial barriers for women candidates, including independents.[65]

2. Children

46. UNESCO noted that, according to the Criminal Code of 1974, it was lawful to use force by way of correction towards a child, pupil or apprentice. UNESCO recommended legally proscribing corporal punishment in educational settings.[66]

47. The United Nations country team reported that the minimum age of criminal responsibility remained 10 years under the Juvenile Justice Act 2014 and that Papua New Guinea planned to initiate a review of that legislation with a view to advocating for raising the minimum age. Papua New Guinea was also pursuing legal and policy reform to address child marriage and ban polygamy. The United Nations country team recommended amending child-related legislation, including the Juvenile Justice Act and the Marriage Act, to align it fully with the Convention on the Rights of the Child, including by raising the minimum age of criminal responsibility and eliminating legal exceptions that permitted child marriage.[67]

48. The United Nations country team observed that, despite the enactment of the Civil and Identity Registration Act 2024, only 7% of children under 5 years of age had a birth certificate, leaving an estimated 1.1 million children without documentation. The United

Nations country team recommended accelerating universal birth registration and legal identity coverage, including for children and persons in displacement settings, to strengthen protection from statelessness, exploitation and exclusion.[68]

49. The United Nations country team recommended improving the adequacy, efficiency and transparency of public spending on children across the education, health and protection sectors. It further recommended expanding equitable access to quality education, health, nutrition and water, sanitation and hygiene services, prioritizing children in remote areas, children with disabilities and those at risk of exclusion.[69]

50. The ILO Committee of Experts on the Application of Conventions and Recommendations noted that, even though the Government had declared a minimum age for admission to employment of 16 years upon ratification of the ILO Minimum Age Convention, 1973 (No. 138), the Employment Act 1978 permitted the employment of children above 14 years of age during school hours when the employer was satisfied that the child no longer attended school. The Committee of Experts also noted that the Minimum Age (Sea) Act 1972 permitted children above 15 years of age to be employed at sea and that the Director of Education could grant approval for the employment of a child above 14 years of age for service at sea when it was considered that such work would be for the immediate and future benefit of the child. Noting that the Government had been referring to a review of those two Acts for a number of years, the Committee of Experts strongly urged the Government to ensure that they were harmonized with the minimum age declared at the international level, namely, 16 years.[70]

51. The ILO Committee of Experts on the Application of Conventions and Recommendations noted that, according to section 104 (1) of the Employment Act 1978, no person under 16 years of age could be employed in any employment, or in any place, or under working conditions that were injurious or likely to be injurious to his or her health in Papua New Guinea. It urged the Government to ensure, within the framework of the review of the Employment Act and the adoption of occupational safety and health legislation, that hazardous work was prohibited for children under the age of 18 years. It also requested the Government to ensure the adoption of a list of hazardous work prohibited for persons under 18 years of age, in consultation with the organizations of employers and workers concerned.[71]

3. Older persons

52. In its 2023 common country analysis, the United Nations in Papua New Guinea stressed that the Constitution of Papua New Guinea did not include age as a basis on which discrimination was prohibited. Older persons often relied on an extended family system of support for their care, and that could result in their being left behind. Youth unemployment and general household income constraints also disproportionately impacted older persons relying on their younger family members for survival. Older persons, particularly women and specific categories of widows, had been reported to be among the most targeted groups for sorcery accusation-related violence, although that could vary.[72]

4. Persons with disabilities

53. The United Nations country team reported that, in 2025, Parliament had passed the Disability Services Act, which would establish a new office for disability services and expand the governance, regulatory and service delivery framework on disability inclusion and equity. It recommended that Papua New Guinea implement the Disability Services Act and expand access for persons with disabilities to education, employment, health and basic services.[73]

5. Indigenous Peoples

54. The United Nations country team reported that customary land constituted over 97% of land in Papua New Guinea. In 2026, Parliament had unanimously endorsed the report of the Special Parliamentary Committee on Customary Land and Land Reform proposing a bill for a customary land tenure law anchored in the principle of free, prior and informed consent, as well as accession to the Indigenous and Tribal Peoples Convention, 1989 (No. 169).[74] Those reforms would help to ensure transparency in land administration, support sustainable development and safeguard the rights of Indigenous Papua New Guineans. The United

Nations in Papua New Guinea reaffirmed its continued support for an inclusive, transparent and human rights-based approach to land governance.[75]

55. On 19 January 2026, the Committee on the Elimination of Racial Discrimination sent a letter to Papua New Guinea under its early warning and urgent action procedures in relation to Indigenous Peoples' rights. The Committee noted that the allegations regarding the delay in the special agricultural and business lease revocation process, and the impacts of abuses by private businesses of Forest Clearing Authority concessions, if verified, would infringe rights of the Indigenous Peoples protected under the International Convention on the Elimination of All Forms of Racial Discrimination. The Committee was specifically concerned about the adverse impacts on Indigenous Peoples' rights, particularly their right to own, develop, control and use their communal lands, territories and resources, and their right of access to justice, effective protection and remedies, particularly fair and just compensation. The Committee recalled other letters from previous years to which Papua New Guinea had not provided any response.[76]

6. Lesbian, gay, bisexual, transgender and intersex persons

56. The United Nations country team reported that no constitutional amendment had been adopted to include sexual orientation or gender identity or expression among the prohibited grounds of discrimination. Consensual same-sex sexual conduct between men remained criminalized under the Criminal Code. There had been several reports of police officers extorting money from, or blackmailing, suspected gay men under threat of arrest or prosecution. The United Nations country team recommended reviewing laws criminalizing consensual same-sex relations and strengthening protection against discrimination based on sexual orientation and gender identity and expression.[77]

7. Migrants, refugees and asylum-seekers

57. UNHCR reported gaps in the national refugee framework, limited institutional capacity for asylum-seeker identification, and the lack of established referral mechanisms, resulting in uneven application and non-application of international legal protections. A range of rights, including freedom of movement, access to education, housing and employment, and protection from penalization on account of unlawful entry or presence, remained restricted by the reservations entered by Papua New Guinea to the Convention relating to the Status of Refugees. UNHCR reported discrimination against asylum-seekers and refugees based on nationality, religion and ethnicity.[78]

58. UNHCR recommended enacting national laws, policies and operational guidelines that provided for the relevant international legal protections in conformity with the Convention relating to the Status of Refugees and ensuring that relevant legal frameworks incorporated the right of non-discrimination and other protections. UNHCR recommended building institutional capacity, including of the Immigration and Citizenship Services Authority, to identify those potentially in need of international protection, make necessary referrals and facilitate their unfettered access to refugee status determination procedures. It further recommended withdrawing in full the country's seven reservations to the Convention relating to the Status of Refugees, which continued to apply to non-transferred asylum-seekers and refugees.[79]

59. UNHCR referred to cases where asylum-seekers had been detained in poor conditions and not afforded reasonable access to basic and life-sustaining necessities. It recommended refraining from detaining asylum-seekers and refugees except in limited cases as a measure of last resort and never in the case of children. It recommended that Papua New Guinea ensure that detention conditions were humane and dignified and that asylum-seekers and refugees were guaranteed access to fundamental human rights.[80]

8. Stateless persons

60. According to UNHCR, a significant proportion of West Papuan refugees did not hold formal documentation or a legal status in Papua New Guinea, leading to potential risks of statelessness and impairing their access to basic services. UNHCR recommended expediting the naturalization of eligible West Papuan refugees through enhanced intragovernmental and intergovernmental cooperation and supporting the livelihoods of these refugees by leveraging available resources.[81]

C. Specific regions or territories

61. On 4 September 2025, the Secretary-General reaffirmed to the Government of Papua New Guinea and the Autonomous Bougainville Government that the United Nations remained committed to supporting both parties equally in the implementation of the Bougainville Peace Agreement and the Melanesian Agreement, in achieving a lasting peace.[82] He stressed that the 2025 Melanesian Agreement exemplified both parties' willingness to engage in difficult conversations, while referring to the United Nations partnership with women, youth and civil society throughout Bougainville.[83]

Notes

1 A/HRC/49/11, A/HRC/49/11/Add.1 and A/HRC/49/2.
2 See https://www.ohchr.org/en/countries/papua-new-guinea/our-presence.
3 United Nations country team submission for the universal periodic review of Papua New Guinea, paras. 27 and 69.
4 UNESCO submission for the universal periodic review of Papua New Guinea, para. 36.
5 United Nations country team submission, para. 25.
6 UNHCR submission for the universal periodic review of Papua New Guinea, p. 5. See also United Nations country team submission, para. 27.
7 UNESCO submission, paras. 29 and 34.
8 Office on Genocide Prevention and the Responsibility to Protect submission for the universal periodic review of Papua New Guinea, p. 2.
9 United Nations country team submission, paras. 9, 26 and 28.
10 Ibid., paras. 2 and 28.
11 Ibid., para. 3.
12 Ibid., paras. 110 and 114.
13 Ibid., para. 111.
14 Ibid., para. 113. See also Office on Genocide Prevention and the Responsibility to Protect submission, p. 5.
15 Office on Genocide Prevention and the Responsibility to Protect submission, p. 5.
16 Ibid., pp. 2 and 5. See also A/HRC/49/11\\conf-share1\LS\ENG\COMMON\FINAL\1, para. 144.33.
17 United Nations country team submission, para. 8. See also para. 27.
18 See https://www.ohchr.org/en/statements-and-speeches/2024/02/un-calls-measures-address-tribal-violence-papua-new-guinea. See also https://papuanewguinea.un.org/en/260983-united-nations-papua-new-guinea-strongly-condemns-mass-killing-over-53-people-enga-province-.
19 See https://papuanewguinea.un.org/en/260983-united-nations-papua-new-guinea-strongly-condemns-mass-killing-over-53-people-enga-province-.
20 See https://www.ohchr.org/en/statements-and-speeches/2024/02/un-calls-measures-address-tribal-violence-papua-new-guinea. See also https://papuanewguinea.un.org/en/260983-united-nations-papua-new-guinea-strongly-condemns-mass-killing-over-53-people-enga-province-.
21 See https://www.ohchr.org/en/statements-and-speeches/2024/02/un-calls-measures-address-tribal-violence-papua-new-guinea.
22 See https://papuanewguinea.un.org/en/260983-united-nations-papua-new-guinea-strongly-condemns-mass-killing-over-53-people-enga-province-.
23 See https://www.ohchr.org/en/statements-and-speeches/2024/07/turk-horrified-killings-papua-new-guinea-urges-accountability.
24 See https://papuanewguinea.un.org/en/274852-un-condemns-violent-atrocities-east-sepik-urges-justice-victims-july-2024.
25 See https://www.ohchr.org/en/statements-and-speeches/2024/07/turk-horrified-killings-papua-new-guinea-urges-accountability.
26 United Nations country team submission, para. 47.

[27] Ibid., para. 48.
[28] Ibid., paras. 49–51.
[29] Ibid., para. 135.
[30] Ibid., paras. 137–139.
[31] Ibid., paras. 19, 30 and 31.
[32] CAC/COSP/IRG/II/4/1/Add.20, pp. 12 and 17.
[33] United Nations country team submission, paras. 88 and 93.
[34] Ibid., paras. 89–91.
[35] Ibid., para. 94.
[36] Office on Genocide Prevention and the Responsibility to Protect submission, p. 5.
[37] UNESCO submission, para. 32.
[38] United Nations country team submission, para. 92.
[39] UNESCO submission, para. 30; and United Nations country team submission, para. 95.
[40] UNESCO submission, para. 33.
[41] United Nations country team submission, para. 112.
[42] Ibid., paras. 107 and 108.
[43] See https://normlex.ilo.org/dyn/nrmlx_en/f?p=1000:13100:0::NO:13100:P13100_COMMENT_ID,P13100_COUNTRY_ID:4470893,103487:NO.
[44] United Nations country team submission, paras. 80 and 85.
[45] See https://normlex.ilo.org/dyn/nrmlx_en/f?p=NORMLEXPUB:13100:0::NO::P13100_COMMENT_ID%2CP13100_COUNTRY_ID:4460740%2C103487.
[46] United Nations country team submission, paras. 16, 17 and 33.
[47] See https://papuanewguinea.un.org/en/289381-un-calls-justice-and-human-rights-protection-amid-gender-based-violence-and-forced-eviction.
[48] United Nations country team submission, paras. 56, 122, 123 and 126.
[49] Ibid., paras. 125 and 127.
[50] Ibid., paras. 120 and 128.
[51] Ibid., para. 101.
[52] See https://normlex.ilo.org/dyn/nrmlx_en/f?p=NORMLEXPUB:13100:0::NO::P13100_COMMENT_ID%2CP13100_COUNTRY_ID:4419331%2C103487.
[53] UNESCO submission, para. 3.
[54] See https://normlex.ilo.org/dyn/nrmlx_en/f?p=NORMLEXPUB:13100:0::NO::P13100_COMMENT_ID%2CP13100_COUNTRY_ID:4470887%2C103487.
[55] UNESCO submission, para. 29.
[56] Ibid., paras. 10 and 29.
[57] Ibid., para. 34.
[58] United Nations country team submission, paras. 74 and 83.
[59] See https://papuanewguinea.un.org/en/298981-statement-un-resident-coordinator-icj%E2%80%99s-landmark-ruling-legal-obligations-states-concerning.
[60] United Nations country team submission, paras. 5–7 and 32.
[61] Office on Genocide Prevention and the Responsibility to Protect submission, pp. 2 and 5.
[62] United Nations country team submission, para. 76.
[63] United Nations Population Fund, “A multidimensional analysis of the National Strategy to Prevent and Respond to Gender-Based Violence 2016 to 2025”, 16 May 2025, pp. 7 and 8; and United Nations country team submission, paras. 134 and 135.
[64] United Nations country team submission, paras. 137–139.
[65] Ibid., paras. 45, 46 and 77.
[66] UNESCO submission, paras. 5 and 29.
[67] United Nations country team submission, paras. 60, 67 and 70.
[68] Ibid., paras. 129 and 131.
[69] Ibid., para. 71.
[70] See https://normlex.ilo.org/dyn/nrmlx_en/f?p=1000:13100:0::NO:13100:P13100_COMMENT_ID,P13100_COUNTRY_ID:4470887,103487:NO.
[71] Ibid.
[72] United Nations in Papua New Guinea, *Common Country Analysis 2023 Update* (2024), p. 77.
[73] United Nations country team submission, paras. 82 and 87.
[74] See https://papuanewguinea.un.org/en/311690-historic-step-forward-customary-land-reform-papua-new-guinea. See also United Nations country team submission, para. 15.

[75] See https://papuanewguinea.un.org/en/311690-historic-step-forward-customary-land-reform-papua-new-guinea.
[76] See https://tbinternet.ohchr.org/_layouts/15/treatybodyexternal/Download.aspx?symbolno=INT%2FCERD%2FALE%2FPNG%2F11346&Lang=en.
[77] United Nations country team submission, paras. 22, 23 and 29.
[78] UNHCR submission, pp. 2, 3 and 5.
[79] Ibid., pp. 4 and 6.
[80] Ibid., p. 6.
[81] Ibid., pp. 4 and 5.
[82] See https://papuanewguinea.un.org/en/300939-united-nations-secretary-general-reaffirms-un-support-both-parties-bougainville-peace.
[83] See https://www.un.org/sg/en/content/sg/statements/2025-09-03/secretary-generals-remarks-the-parliament-of-papua-new-guinea-delivered?_gl=1%2A1gjt0jz%2A_ga%2ANjUxNTY2MTU0LjE3NjMwMDYxMzU.%2A_ga_S5EKZKSB78%2AczE3ODEwODEzNjEkbzEkZzAkdDE3ODEwODEzNjQkajU3JGwwJGgw.